

		Accordingly, the demurrer is SUSTAINED with 20 days leave to amend. <u>Seventh Cause of Action – Breach of Contract:</u> The Complaint fails to plead facts demonstrating that Defendant breached any specific term of the written contract. (<i>Oasis West Realty, LLC v. Goldman</i> (2011) 51 Cal.4th 811 [elements of breach of contract].) The allegation that the contract “requires the room to be maintained in a sanitary, clean, and habitable condition,” does not specify any particular contract term that was breached. Accordingly, the demurrer is SUSTAINED with 20 days leave to amend. Furthermore, as to all causes of action, Plaintiff failed to oppose the demurrer and has therefore implicitly conceded the Demurrer’s merit. (See <i>Herzberg v. County of Plumas</i> (2005) 133 Cal.App.4th 1, 20; <i>Sexton v. Superior Court</i> (1997) 58 Cal.App.4th 1403, 1410.) <i>Counsel for Defendant is to give notice.</i>
11.	Von Dehn v. The Lawyers Group, Inc. 20-1153544	The Motion for Summary Judgment filed by Defendants The Lawyers Group, Inc. and Lawrence Levy on 3/10/23 is GRANTED. As a preliminary matter there are a large number of objections on both sides. As to Plaintiff’s objections to the Carlson declaration and the Shapiro declaration, the objections are OVERRULED. As to Defendants’ objections to Plaintiff’s Declaration, the objections to ¶¶ 6-8, 13-15, and 19 are SUSTAINED. The rest are OVERRULED. As to the Jacobson Declaration, objections to ¶¶ 7b, 7f, and 9 are SUSTAINED. The remainder are overruled. This action concerns a single cause of action for professional negligence. "The elements of a cause of action for legal malpractice are (1) the existence of an attorney-client relationship or other basis for duty; (2) a negligent act or omission; (3) causation; and (4) damages." (<i>Kurini v. Hanna & Morton</i> (1997) 55 Cal.App.4th 853, 863.) "'Proof of legal malpractice requires proof not only of negligence by the lawyer but also of causation, a trial within a trial to establish that, but for the lawyer's negligence, the client would have prevailed in the underlying action.'" (<i>Id.</i> at p. 864, internal citations omitted.) Plaintiff must prove that but for the negligence of the attorney, a better result would have been obtained and she "must prove what that better outcome would have been." (<i>Marshak v. Ballesteros</i> (1999) 72 Cal.App.4 1h 1514, 1518.)

It is undisputed that Plaintiff retained Defendants The Lawyers Group, Inc. around July 11, 2014 to represent her in the underlying action, a slip-and-fall case concerning Costco. (Undisputed Material Facts of Defendants The Lawyers Group, Inc. and Lawrence Levy ("UMF") 2.) Defendants Law Offices of Murphy & Eftekhari associated in as co-counsel. (UMF 3.) It is undisputed that Plaintiff prevailed at trial, with an award of \$44,703.06 in past economic loss, \$21,017.77 in future economic loss, and \$30,000 for noneconomic loss, as well as \$8,065 in costs. (UMF 11.) Plaintiff's attorneys filed a Motion for New Trial based on the denial of future general damages by the jury. (UMF 12.) The Court issued a conditional order granting a new trial on damages for future noneconomic loss unless Defendant Costco consented to add \$30,000 to the Judgment as damages for future noneconomic loss. (UMF 14.) This brought the total recovery to \$133, 785.83. (UMF 16.)

There is no dispute as to the first element of legal malpractice, as the parties agree that there was an attorney-client relationship. While a number of instances of negligence are claimed in the First Amended Complaint, Plaintiff's opposition and her expert's declaration focus on just six: failure to advise or discuss settlement offers and demands with Plaintiff, failure to obtain many of Plaintiff's medical records or bills, associating in various law firms in and out, Plaintiff's file being in such disarray that other counsel sought by Plaintiff could not take the case, failure to designate an independent medical expert or an economist or accountant to testify as to "present value" of future care numbers, and associating in Mr. Carlson as trial attorney without Plaintiff's knowledge or consent when she understood that Defendant Murphy would be handling trial. The competing expert declarations offered by Defendants and Plaintiff raise triable issues of material fact as to negligent acts or omissions.

However, as to causation and damages, Defendants' expert opines that "Plaintiff's complaints about the handling of her case did not result in any harm, quantifiable or otherwise" and that counsel's actions were "not a legal cause of any harm to Plaintiff". (Shapiro Declaration ¶ 18.) Plaintiff's expert offers no opinion on causation or damages, and merely states that "In view of the Judgment and Plaintiff's injuries and future damages, no reasonable person could conclude that Defendants were 'ultimately successful at trial.'" (Jacobson Declaration ¶ 8.) While Mr. Jacobson opines that Mr. Shapiro ignores that defendants failed to secure all available evidence, he does not offer an opinion on what the damages would be to Plaintiff caused by that

particular failure, or that Plaintiff suffered any damages at all. Plaintiff has offered no evidence as to damages suffered or linking such damages to acts or omissions by the Defendants. Though Plaintiff vaguely asserts that her medical records and bills were not obtained or presented to the jury, she offers no evidence as to the contents of those records, amounts represented in those bills, or any indication that those documents would have augmented the award from the jury. As such, Plaintiff has failed to raise a triable issue of material fact as to causation and damages. The motion is therefore **GRANTED**.

The Motion for Summary Judgment/Adjudication filed by Defendant Lloyd Thomas Murphy on 3/14/23 (amended on 3/23/23 to include Defendant Law Offices of Murphy & Eftekhari as a moving Defendant) is **GRANTED**.

Though the two sets of Defendants filed separate motions and played separate roles in the representation of Plaintiff, the expert declarations are identical and the arguments overlap. As Plaintiff filed a single set of objections to the declarations aimed at both motions, the ruling on those objections stands. As to Defendants' objections, they largely mirror those in the motion above. Again, objections to Plaintiff's declaration, as ¶¶ 2, 5-8, 13-15, and 19 are **SUSTAINED** as above. The objections to the Jacobson declaration are **SUSTAINED** as to ¶¶ 7b, 7f, and 9.

It is undisputed that Plaintiff first retained Defendants The Lawyers Group, Inc. and Lawrence Levy to represent her in July 2014. (Undisputed Material Facts of Defendants Law Offices of Murphy Eftekhari and Lloyd Thomas Murphy ("UMF") 1.) The Moving Defendants did not become counsel of record until July 6, 2017. (UMF 2.) The parties agree that the trial was conducted by Mr. Carlson.

As above, a number of instances of negligence are claimed in the First Amended Complaint, Plaintiff's opposition and her expert's declaration focus on just six: failure to advise or discuss settlement offers and demands with Plaintiff, failure to obtain many of Plaintiff's medical records or bills, associating in various law firms in and out, Plaintiff's file being in such disarray that other counsel sought by Plaintiff could not take the case, failure to designate an independent medical expert or an economist or accountant to testify as to "present value" of future care numbers, and associating in Mr. Carlson as trial attorney without Plaintiff's knowledge or consent when she understood that Defendant Murphy would be handling trial. As the expert declarations for both this motion and the motion above are identical, there is again

		a triable issue of material fact as to whether there were negligent acts or omissions on the part of the moving Defendants. Likewise, as to causation and damages, Defendants' expert opines that "Plaintiff's complaints about the handling of her case did not result in any harm, quantifiable or otherwise" and that counsel's actions were "not a legal cause of any harm to Plaintiff". (Shapiro Declaration ¶ 18.) Plaintiff's expert offers no opinion on causation or damages, and merely states that "In view of the Judgment and Plaintiff's injuries and future damages, no reasonable person could conclude that Defendants were 'ultimately successful at trial.'" (Jacobson Declaration ¶ 8.) While Mr. Jacobson opines that Mr. Shapiro ignores that defendants failed to secure all available evidence, he does not offer an opinion on what the damages would be to Plaintiff caused by that particular failure, or that Plaintiff suffered any damages at all. Plaintiff has offered no evidence as to damages suffered or linking such damages to acts or omissions by the Defendants. Though Plaintiff vaguely asserts that her medical records and bills were not obtained or presented to the jury, she offers no evidence as to the contents of those records, amounts represented in those bills, or any indication that those documents would have augmented the award from the jury. Plaintiff asserts that her case was hurt by Mr. Carlson presenting the case rather than Mr. Murphy, however the only evidence offered to support that are inadmissible hearsay statements in her own declaration in support of this motion that are directly countered by the declaration of Mr. Carlson offered by Defendants. As such, Plaintiff has failed to raise a triable issue of material fact as to causation and damages. The motion is therefore GRANTED. <i>Moving counsel is to give notice of this ruling.</i>
12.	Tecaxco v. 2175 S. Mallul Dr., LLC 19-1069535	Attorneys Citron & Citron's ("Attorneys") Motion to Be Relieved as Counsel ("Motion") for defendants 2175 S Mallul Dr, LLC, JK Properties, Inc., and Legacy Partners, Inc. ("Defendants"), is GRANTED. Attorneys have complied with the requirements of California Rule of Court 3.1362 and have filed and served forms MC-051, MC-052, and MC-053 upon Defendants and all parties who have appeared in this action. Attorneys have indicated good cause for requesting relief. (CA ST RPC Rule 1.16(b)(4); <i>Thomas G. Ferruzzo, Inc. v. Superior Ct.</i> (1980) 104 Cal. App. 3d 501, 502-04 ("<i>Ferruzzo</i>"); <i>Est. of Falco</i> (1987) 188 Cal. App. 3d 1004, 1014.)